

**SUBSTITUTE FOR
HOUSE BILL NO. 5121**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending section 2950a (MCL 600.2950a), as amended by 2018 PA
146, and by adding sections 2950d and 2950p.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2950a. (1) Except as provided in subsections ~~(27),~~ (28),
2 ~~and (30),~~ **(29), and (31)**, by commencing an independent action to
3 obtain relief under this section, by joining a claim to an action,
4 or by filing a motion in an action in which the petitioner and the
5 individual to be restrained or enjoined are parties, an individual
6 may petition the family division of circuit court to enter a
7 personal protection order to restrain or enjoin an individual from
8 engaging in conduct that is prohibited under section 411h, 411i, or



411s of the Michigan penal code, 1931 PA 328, MCL 750.411h, 750.411i, and 750.411s. A court shall not grant relief under this subsection unless the petition alleges facts that constitute stalking as defined in section 411h or 411i, or conduct that is prohibited under section 411s, of the Michigan penal code, 1931 PA 328, MCL 750.411h, 750.411i, and 750.411s. Relief may be sought and granted under this subsection whether or not the individual to be restrained or enjoined has been charged or convicted under section 411h, 411i, or 411s of the Michigan penal code, 1931 PA 328, MCL 750.411h, 750.411i, and 750.411s, for the alleged violation.

(2) Except as provided in subsections ~~(27), (28), and (30),~~ **(29), and (31)**, by commencing an independent action to obtain relief under this section, by joining a claim to an action, or by filing a motion in an action in which the petitioner and the individual to be restrained or enjoined are parties, an individual may petition the family division of circuit court to enter a personal protection order to restrain or enjoin an individual from engaging in any of the following:

(a) One or more of the acts listed in subsection (3), if the respondent has been convicted of a sexual assault of the petitioner, or the respondent has been convicted of furnishing obscene material to the petitioner under section 142 of the Michigan penal code, 1931 PA 328, MCL 750.142, or a substantially similar law of the United States, another state, or a foreign country or tribal or military law. A court shall grant relief under this subdivision if the court determines that the respondent has been convicted of a sexual assault of the petitioner or that the respondent was convicted of furnishing obscene material to the petitioner under section 142 of the Michigan penal code, 1931 PA



1 328, MCL 750.142, or a substantially similar law of the United
2 States, another state, or a foreign country or tribal or military
3 law.

4 (b) One or more of the acts listed in subsection (3), if the
5 petitioner has been subjected to, threatened with, or placed in
6 reasonable apprehension of sexual assault by the individual to be
7 enjoined. A court shall not grant relief under this subdivision
8 unless the petition alleges facts that demonstrate that the
9 respondent has perpetrated or threatened sexual assault against the
10 petitioner. Evidence that a respondent has furnished obscene
11 material to a minor petitioner is evidence that the respondent has
12 threatened sexual assault against the petitioner. Relief may be
13 sought and granted under this subdivision regardless of whether the
14 individual to be restrained or enjoined has been charged with or
15 convicted of sexual assault or an offense under section 142 of the
16 Michigan penal code, 1931 PA 328, MCL 750.142, or a substantially
17 similar law of the United States, another state, or a foreign
18 country or tribal or military law.

19 (3) The court may restrain or enjoin an individual against
20 whom a protection order is sought under subsection (2) from 1 or
21 more of the following:

22 (a) Entering onto premises.

23 (b) Threatening to sexually assault, kill, or physically
24 injure petitioner or a named individual.

25 (c) Purchasing or possessing a firearm.

26 (d) Interfering with the petitioner's efforts to remove the
27 petitioner's children or personal property from premises that are
28 solely owned or leased by the individual to be restrained or
29 enjoined.



1 (e) Interfering with the petitioner at the petitioner's place
2 of employment or education or engaging in conduct that impairs the
3 petitioner's employment or educational relationship or environment.

4 (f) Following or appearing within the sight of the petitioner.

5 (g) Approaching or confronting the petitioner in a public
6 place or on private property.

7 (h) Appearing at the petitioner's workplace or residence.

8 (i) Entering onto or remaining on property owned, leased, or
9 occupied by the petitioner.

10 (j) Contacting the petitioner by telephone.

11 (k) If the petitioner is a minor who is enrolled in a public
12 or nonpublic school that operates any of grades K to 12, attending
13 school in the same building as the petitioner.

14 (l) Sending mail or electronic communications to the
15 petitioner.

16 (m) Placing an object on, or delivering an object to, property
17 owned, leased, or occupied by the petitioner.

18 (n) Engaging in conduct that is prohibited under section 411s
19 of the Michigan penal code, 1931 PA 328, MCL 750.411s.

20 (o) Any other specific act or conduct that imposes upon or
21 interferes with personal liberty or that causes a reasonable
22 apprehension of violence or sexual assault.

23 (4) Section 520j of the Michigan penal code, 1931 PA 328, MCL
24 750.520j, applies in any hearing on a petition for, a motion to
25 modify or terminate, or an alleged violation of a personal
26 protection order requested or issued under subsection (2), except
27 as follows:

28 (a) The written motion and offer of proof must be filed at
29 least 24 hours before a hearing on a petition to issue a personal



1 protection order or on an alleged violation of a personal
2 protection order.

3 (b) The written motion and offer of proof must be filed at the
4 same time that a motion to modify or terminate a personal
5 protection order is filed.

6 (5) If the respondent to a petition under this section is an
7 individual who is issued a license to carry a concealed weapon and
8 is required to carry a weapon as a condition of ~~his or her~~
9 employment, a police officer licensed or certified by the Michigan
10 commission on law enforcement standards act, 1965 PA 203, MCL
11 28.601 to 28.615, a sheriff, a deputy sheriff or a member of the
12 ~~Michigan~~ department of state police, a local corrections officer, a
13 department of corrections employee, or a federal law enforcement
14 officer who carries a firearm during the normal course of ~~his or~~
15 ~~her~~ employment, the petitioner shall notify the court of the
16 respondent's occupation before the personal protection order is
17 issued. This subsection does not apply to a petitioner who does not
18 know the respondent's occupation.

19 (6) A petitioner may omit ~~his or her~~ **the petitioner's** address
20 of residence from documents filed with the court under this
21 section. If a petitioner omits ~~his or her~~ **the petitioner's** address
22 of residence, the petitioner shall provide the court a mailing
23 address.

24 (7) If a court issues or refuses to issue a personal
25 protection order, the court shall immediately state in writing the
26 specific reasons for issuing or refusing to issue the personal
27 protection order. If a hearing is held, the court shall also
28 immediately state on the record the specific reasons for issuing or
29 refusing to issue a personal protection order.



(8) A court shall not issue a mutual personal protection order. Correlative separate personal protection orders are prohibited unless both parties have properly petitioned the court under subsection (1) or (2).

(9) A personal protection order is effective and immediately enforceable anywhere in this state after being signed by a judge. Upon service, a personal protection order also may be enforced by another state, an Indian tribe, or a territory of the United States.

(10) The court that issues a personal protection order shall designate **in the order** a law enforcement agency that is responsible for entering the personal protection order into the L.E.I.N.

(11) The court that issues a personal protection order shall designate in the order a law enforcement agency that is responsible for serving the order, and the petition and notice of hearing, if applicable, on the respondent. However, this subsection does not bar any other law enforcement agency from serving these documents.

(12) ~~(11)~~ A personal protection order issued under this section must include all of the following, to the extent practicable in a single form:

(a) A statement that the personal protection order has been entered to enjoin or restrain conduct listed in the order and that violation of the personal protection order will subject the individual restrained or enjoined to 1 or more of the following:

(i) If the respondent is 17 years of age or older, immediate arrest and the civil and criminal contempt powers of the court. If the respondent is found guilty of criminal contempt, ~~he or she~~ **the respondent** must be imprisoned for not more than 93 days and may be fined not more than \$500.00.



(ii) If the respondent is less than 17 years of age, immediate apprehension or being taken into custody and the dispositional alternatives listed in section 18 of chapter XIIIA of the probate code of 1939, 1939 PA 288, MCL 712A.18.

(iii) If the respondent violates the personal protection order in a jurisdiction other than this state, the enforcement procedures and penalties of the state, Indian tribe, or United States territory under whose jurisdiction the violation occurred.

(b) A statement that the personal protection order is effective and immediately enforceable anywhere in this state after being signed by a judge, and that on service, a personal protection order also may be enforced by another state, an Indian tribe, or a territory of the United States.

(c) A statement listing each type of conduct enjoined.

(d) An expiration date stated clearly on the face of the order.

(e) A statement that the personal protection order is enforceable anywhere in this state by any law enforcement agency.

(f) The name of the law enforcement agency designated by the court to enter the personal protection order into the L.E.I.N.

(g) The name of the law enforcement agency designated by the court to serve the personal protection order on the respondent.

(h) ~~(g)~~ For an ex parte order, a statement that the individual restrained or enjoined may file a motion to modify or rescind the personal protection order and request a hearing within 14 days after the individual restrained or enjoined is served or receives actual notice of the personal protection order and that motion forms and filing instructions are available from the clerk of the court.



1 (13) ~~(12)~~ A court shall not issue a personal protection order
 2 ex parte without written or oral notice to the individual enjoined
 3 or ~~his or her~~ **the individual's** attorney unless it clearly appears
 4 from specific facts shown by a verified complaint, written motion,
 5 or affidavit that immediate and irreparable injury, loss, or damage
 6 will result from the delay required to effectuate notice or that
 7 the notice will precipitate adverse action before a personal
 8 protection order can be issued.

9 (14) ~~(13)~~ A personal protection order issued under subsection
 10 ~~(12)~~ **(13)** is valid for not less than 182 days. The individual
 11 restrained or enjoined may file a motion to modify or rescind the
 12 personal protection order and request a hearing under the Michigan
 13 court rules. A motion to modify or rescind the personal protection
 14 order must be filed within 14 days after the order is served or
 15 after the individual restrained or enjoined receives actual notice
 16 of the personal protection order unless good cause is shown for
 17 filing the motion after 14 days have elapsed.

18 (15) ~~(14)~~ Except as otherwise provided in this subsection, a
 19 court shall schedule a hearing on a motion to modify or rescind an
 20 ex parte personal protection order within 14 days after the motion
 21 to modify or rescind is filed. If the respondent is ~~a person~~ **an**
 22 **individual** described in subsection (5) and the personal protection
 23 order prohibits ~~him or her~~ **the respondent** from purchasing or
 24 possessing a firearm, the court shall schedule a hearing on the
 25 motion to modify or rescind the ex parte personal protection order
 26 within 5 days after the motion to modify or rescind is filed.

27 (16) ~~(15)~~ The clerk of the court that issues a personal
 28 protection order shall do all of the following immediately upon
 29 issuance without requiring proof of service on the individual



1 restrained or enjoined:

2 (a) ~~File-Transmit~~ a true copy of the personal protection order
 3 ~~with-to~~ the law enforcement agency **or agencies** designated by the
 4 court in the personal protection order **under subsections (10) and**
 5 **(11) .**

6 (b) Provide the petitioner with 2 or more true copies of the
 7 personal protection order **at no cost to the petitioner.**

8 (c) **Inform the petitioner that the personal protection order**
 9 **and the petition and notice of hearing, if applicable, must be**
 10 **served immediately and at no charge to the petitioner by the law**
 11 **enforcement agency designated by the court under subsection (11) .**

12 (d) ~~(e)~~—If the individual restrained or enjoined is identified
 13 in the pleadings as a law enforcement officer, notify the officer's
 14 employing law enforcement agency of the existence of the personal
 15 protection order.

16 (e) ~~(d)~~—If the personal protection order prohibits the
 17 individual restrained or enjoined from purchasing or possessing a
 18 firearm, notify the county clerk of the individual's county of
 19 residence of the existence and content of the personal protection
 20 order.

21 (f) ~~(e)~~—If the individual restrained or enjoined is identified
 22 in the pleadings as a department of corrections employee, notify
 23 the department of corrections of the existence of the personal
 24 protection order.

25 (g) ~~(f)~~—If the individual restrained or enjoined is identified
 26 in the pleadings as a person who may have access to information
 27 concerning the petitioner or a child of the petitioner or
 28 individual and that information is contained in friend of the court
 29 records, notify the friend of the court for the county in which the



1 information is located of the existence of the personal protection
2 order.

3 (17) ~~(16)~~—The clerk of a court that issues a personal
4 protection order shall inform the petitioner that ~~he or she~~ **the**
5 **petitioner** may take a true copy of the personal protection order to
6 the law enforcement agency designated by the court under subsection
7 (10) to be immediately entered into the L.E.I.N.

8 (18) ~~(17)~~—The law enforcement agency that receives a true copy
9 of a personal protection order under subsection ~~(15) or~~ (16) **or**
10 (17) shall immediately, without requiring proof of service, enter
11 the personal protection order into the L.E.I.N.

12 (19) ~~(18)~~—A personal protection order issued under this
13 section must be served ~~personally, by registered or certified mail,~~
14 ~~return receipt requested, delivery restricted to the addressee at~~
15 ~~the last known address or addresses of the individual restrained or~~
16 ~~enjoined or by any other method allowed by the Michigan court~~
17 ~~rules.~~ **as provided in section 2950d.** If the individual restrained
18 or enjoined has not been served, a law enforcement officer or clerk
19 of the court who knows that a personal protection order exists may,
20 at any time, serve the individual restrained or enjoined with a
21 true copy of the order or advise the individual restrained or
22 enjoined of the existence of the personal protection order, the
23 specific conduct enjoined, the penalties for violating the order,
24 and where the individual restrained or enjoined may obtain a copy
25 of the order. ~~If the individual restrained or enjoined is less than~~
26 ~~18 years of age, the parent, guardian, or custodian of the~~
27 ~~individual must also be served personally or by registered or~~
28 ~~certified mail, return receipt requested, delivery restricted to~~
29 ~~the addressee at the last known address or addresses of the parent,~~



~~guardian, or custodian.~~ A proof of service or proof of oral notice must be filed with the clerk of the court issuing the personal protection order. This subsection does not prohibit the immediate effectiveness of a personal protection order or immediate enforcement under subsection ~~(21) or (22)~~ **or (23)**.

(20) ~~(19)~~ The clerk of the court that issued a personal protection order shall immediately notify the law enforcement agency that received the personal protection order under subsection ~~(15) or (16)~~ **or (17)** if either or both of the following occur:

(a) The clerk of the court receives proof that the individual restrained or enjoined has been served. **This subdivision does not apply if the law enforcement agency that received the personal protection order serves the personal protection order.**

(b) The personal protection order is rescinded, modified, or extended by court order.

(21) ~~(20)~~ The law enforcement agency that receives information under subsection ~~(19)~~ **(20)** shall enter the information or cause the information to be entered into the L.E.I.N.

(22) ~~(21)~~ Subject to subsection ~~(22)~~, **(23)**, a personal protection order is immediately enforceable anywhere in this state by any law enforcement agency that has received a true copy of the order, is shown a copy of ~~it~~, **the order**, or has verified ~~its~~ **the order's** existence on the L.E.I.N.

(23) ~~(22)~~ If the individual restrained or enjoined by a personal protection order has not been served, a law enforcement agency or officer responding to a call alleging a violation of the personal protection order shall serve the individual restrained or enjoined with a true copy of the order or advise the individual restrained or enjoined of the existence of the personal protection



1 order, the specific conduct enjoined, the penalties for violating
2 the order, and where the individual restrained or enjoined may
3 obtain a copy of the order. The law enforcement officer shall
4 enforce the personal protection order and immediately enter or
5 cause to be entered into the L.E.I.N. that the individual
6 restrained or enjoined has actual notice of the personal protection
7 order. The law enforcement officer also shall file a proof of
8 service or proof of oral notice with the clerk of the court that
9 issued the personal protection order. If the individual restrained
10 or enjoined has not received notice of the personal protection
11 order, the individual restrained or enjoined must be given an
12 opportunity to comply with the personal protection order before the
13 law enforcement officer makes a custodial arrest for violation of
14 the personal protection order. Failure to immediately comply with
15 the personal protection order is grounds for an immediate custodial
16 arrest. This subsection does not preclude an arrest under section
17 15 or 15a of chapter IV of the code of criminal procedure, 1927 PA
18 175, MCL 764.15 and 764.15a, or a proceeding under section 14 of
19 chapter XIIA of the probate code of 1939, 1939 PA 288, MCL 712A.14.

20 **(24)** ~~(23)~~—An individual 17 years of age or older who refuses
21 or fails to comply with a personal protection order issued under
22 this section is subject to the criminal contempt powers of the
23 court and, if found guilty of criminal contempt, must be imprisoned
24 for not more than 93 days and may be fined not more than \$500.00.
25 An individual less than 17 years of age who refuses or fails to
26 comply with a personal protection order issued under this section
27 is subject to the dispositional alternatives listed in section 18
28 of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL
29 712A.18. The criminal penalty under this section may be imposed in



1 addition to any penalty that may be imposed for any other criminal
2 offense arising from the same conduct.

3 (25) ~~(24)~~ An individual who knowingly and intentionally makes
4 a false statement to a court in support of ~~his or her~~ **the**
5 **individual's** petition for a personal protection order is subject to
6 the contempt powers of the court.

7 (26) ~~(25)~~ A personal protection order issued under this
8 section is also enforceable under section 15b of chapter IV of the
9 code of criminal procedure, 1927 PA 175, MCL 764.15b, and chapter
10 17.

11 (27) ~~(26)~~ A personal protection order issued under this
12 section may enjoin or restrain an individual from purchasing or
13 possessing a firearm.

14 (28) ~~(27)~~ A court shall not issue a personal protection order
15 that restrains or enjoins conduct described in subsection (1) or
16 (3) if any of the following apply:

17 (a) The respondent is the unemancipated minor child of the
18 petitioner.

19 (b) The petitioner is the unemancipated minor child of the
20 respondent.

21 (c) The respondent is a minor child less than 10 years of age.

22 (29) ~~(28)~~ If the respondent is less than 18 years old,
23 issuance of a personal protection order under this section is
24 subject to chapter XIIIA of the probate code of 1939, 1939 PA 288,
25 MCL 712A.1 to 712A.32.

26 (30) ~~(29)~~ A personal protection order issued before March 1,
27 1999 is not invalid on the ~~ground~~ **grounds** that it does not comply
28 with 1 or more of the requirements added by 1998 PA 476.

29 (31) ~~(30)~~ A court shall not issue a personal protection order



1 under this section if the petitioner is a prisoner. If a personal
2 protection order is issued in violation of this subsection, a court
3 shall rescind the personal protection order upon notification and
4 verification that the petitioner is a prisoner.

5 (32) ~~(31)~~ As used in this section:

6 (a) "Convicted" means 1 of the following:

7 (i) The subject of a judgment of conviction or a probation
8 order entered in a court that has jurisdiction over criminal
9 offenses, including a tribal court or a military court.

10 (ii) Assigned to youthful trainee status under sections 11 to
11 15 of chapter II of the code of criminal procedure, 1927 PA 175,
12 MCL 762.11 to 762.15, if the individual's status of youthful
13 trainee is revoked and an adjudication of guilt is entered.

14 (iii) The subject of an order of disposition entered under
15 section 18 of chapter XIIA of the probate code of 1939, 1939 PA
16 288, MCL 712A.18, that is open to the general public under section
17 28 of chapter XIIA of the probate code of 1939, 1939 PA 288, MCL
18 712A.28.

19 (iv) The subject of an order of disposition or other
20 adjudication in a juvenile matter in another state or country.

21 (b) "Federal law enforcement officer" means an officer or
22 agent employed by a law enforcement agency of the United States
23 government whose primary responsibility is the enforcement of laws
24 of the United States.

25 (c) "L.E.I.N." means the law enforcement information network
26 administered under the C.J.I.S. policy council act, 1974 PA 163,
27 MCL 28.211 to 28.215.

28 (d) "Personal protection order" means an injunctive order
29 issued by the family division of circuit court restraining or



1 enjoining conduct prohibited under subsection (1) or (3).

2 (e) "Prisoner" means a person subject to incarceration,
3 detention, or admission to a prison who is accused of, convicted
4 of, sentenced for, or adjudicated delinquent for violations of
5 federal, state, or local law or the terms and conditions of parole,
6 probation, pretrial release, or a diversionary program.

7 (f) "Sexual assault" means an act, attempted act, or
8 conspiracy to engage in an act of criminal conduct as defined in
9 section 520b, 520c, 520d, 520e, or 520g of the Michigan penal code,
10 1931 PA 328, MCL 750.520b, 750.520c, 750.520d, 750.520e, and
11 750.520g, or an offense under a law of the United States, another
12 state, or a foreign country or tribal or military law that is
13 substantially similar to an offense listed in this subdivision.

14 **Sec. 2950d. (1) Except as provided in this section, a personal**
15 **protection order issued under section 2950 or 2950a must be served**
16 **personally; by registered or certified mail, return receipt**
17 **requested, delivery restricted to the addressee at the last known**
18 **address or addresses of the individual restrained or enjoined; or**
19 **by any other method allowed by the Michigan court rules.**

20 (2) If service under subsection (1) is being made by a law
21 enforcement agency, the personal protection order must be served
22 personally. If the first attempt at service is not successful, no
23 fewer than 2 additional attempts to serve the order should be made
24 within 10 calendar days after the first attempt. If service cannot
25 be completed within 10 calendar days after the first attempt, the
26 law enforcement agency shall do all of the following:

27 (a) Within 48 hours, notify the petitioner that service has
28 not been successful. The petitioner shall provide information
29 sufficient to permit notification.



1 (b) Within 3 business days, complete and file a proof of
2 service form documenting each service attempt and stating the
3 reason it was not served.

4 (c) Continue to attempt to complete service unless otherwise
5 directed by the court. All attempts at service must be documented
6 and maintained by the law enforcement agency and made available to
7 the petitioner and the court on request.

8 (3) If the individual restrained or enjoined by a personal
9 protection order issued under section 2950 or 2950a is less than 18
10 years of age, the parent, guardian, or custodian of the individual
11 must also be served personally or by registered or certified mail,
12 return receipt requested, delivery restricted to the addressee at
13 the last known address or addresses of the parent, guardian, or
14 custodian.

15 (4) To comply with 34 USC 10450, the law enforcement agency
16 designated under section 2950(11) or 2950a(11), as applicable,
17 shall immediately serve the personal protection order as required
18 under this section without charge to the petitioner, as provided in
19 section 2559.

20 (5) If a new, amended, or extended personal protection order,
21 or an order terminating a personal protection order, is entered
22 after the original service under this section, the clerk of the
23 court shall provide true copies of the order to the parties, if
24 they are present, at the time the order is entered. A party may
25 acknowledge receipt of the order in writing, on the record, or in
26 any other manner allowed by the court rules. If a party fails or
27 refuses to acknowledge the receipt of a true copy of the order, the
28 clerk shall note in the case file that the party was served. If
29 delivery to a party is not possible at the time the order is



1 entered, the clerk shall mail true copies of the order to the party
2 by first-class mail to the address on record with the court and
3 shall file a proof of service. Service by mail is complete on
4 mailing.

5 (6) Subject to subsection (5), if the respondent is served
6 with a personal protection order under this section, any subsequent
7 document filed in the action may be served on the respondent by
8 first-class mail at the address provided by the respondent, except
9 for a motion to show cause or an order to appear on a show cause
10 motion.

11 Sec. 2950p. (1) The personal protection order service fund is
12 created in the state treasury.

13 (2) The state treasurer shall deposit money and other assets
14 received from state and federal appropriations, public or private
15 grants, or any other source in the fund. The state treasurer shall
16 direct the investment of money in the personal protection order
17 service fund and credit interest and earnings from the investments
18 to the fund.

19 (3) The department of state police is the administrator of the
20 personal protection order service fund for audits of the fund.

21 (4) The department of state police shall expend money from the
22 personal protection order service fund on appropriation, only for
23 the following:

24 (a) To provide for service by law enforcement agencies of
25 court documents in proceedings for personal protection orders under
26 sections 2950 and 2950a, and foreign protection orders under
27 section 2950/, as provided in section 2559, to assure compliance
28 with section 40121 of the violence against women act of 1994, 34
29 USC 10450.



1 **(b) To pay the costs of administering the fund.**

2 Enacting section 1. This amendatory act does not take effect
 3 unless all of the following bills of the 103rd Legislature are
 4 enacted into law:

5 (a) House Bill No. 5120.

6 (b) House Bill No. 6033.